

STATE OF NEW YORK

8085--A

2025-2026 Regular Sessions

IN SENATE

May 15, 2025

Introduced by Sen. PERSAUD -- read twice and ordered printed, and when printed to be committed to the Committee on Mental Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the mental hygiene law, in relation to the timeframe for a hearing in guardianship proceedings

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

- 1 Section 1. Paragraph 1 of subdivision (b) of section 81.07 of the
2 mental hygiene law, as amended by chapter 438 of the laws of 2004, is
3 amended to read as follows:
4 1. set the date on which the order to show cause is heard no more than
5 [~~twenty-eight~~] thirty-five days from the date of the signing of the
6 order to show cause. The court may for good cause shown set a date less
7 than [~~twenty-eight~~] thirty-five days from the date of the signing of the
8 order to show cause. The date of the hearing may be adjourned only for
9 good cause shown;
10 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

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